

		counsel confirmed the last known address of Plaintiff for service by mail. Therefore, the proof of service is deficient. Clerk to give notice.
3	Bella Terra Associates, LLC vs. Sender One Bella Terra LLC 30-2024-01423200-CU-BT-CJC	Motion for Leave to File First Amended Complaint Plaintiff Bella Terra Associates, LLC's Motion for Leave to Amend is GRANTED. Defendants have not shown the change in the claim for damages will result in any prejudice. Plaintiff is ORDERED to file the proposed amended complaint attached to its Motion as Exhibit B within 5 days. Plaintiff to give notice.
4	Thomas vs. City of Rancho Santa Margarita 30-2024-01396694-CU-PO-CJC	Defendant Rancho Santa Margarita Landscape and Recreation Corporation's Motion for Leave to File a First Amended Answer Defendant Rancho Santa Margarita Landscape and Recreation Corporation's Motion for Leave to File a First Amended Answer is GRANTED. Defendant's request for judicial notice of the secured assessment role for the subject greenbelt and a certified copy of the recorded deed for the subject greenbelt is GRANTED. Plaintiff's objection to Defendant's request for judicial notice is OVERRULED. Defendant seeks leave to amend its answer to add the additional defense of immunity based on recreational entry onto land pursuant to Civil Code section 846 because it only recently learned it owned the greenbelt at issue. (Sorkin Decl., ¶ 8, Ex. D.) The parties initially believed the greenbelt, which is maintained by Defendant, was owned by the City. On 3/24/2026, during Plaintiff's deposition, defendant's counsel questioned Plaintiff concerning the exceptions to Civil Code section 846 and confirmed she did not have express permission to enter the greenbelt, she did not pay consideration to enter the greenbelt, and she had no knowledge that the indentation on the greenbelt was an intentionally placed trap. (See Sorkin Decl., ¶ 3; see also Anderson Decl., ¶ 10.)

		On 3/26/2026, Defendant's counsel went to the Orange County Assessor's office and the Recorder's office and learned for the first time that the subject greenbelt has been owned by Defendant since 1988 pursuant to a recorded grant deed. (Sorkin Decl., ¶ 5, RJN, Exs. A, B.) Defendant contends it was not aware of its ownership of the greenbelt prior to 3/26/2026 because some of the greenbelts are owned by the City while some are owned by Defendant. (Sorkin Decl., ¶ 4.) Defendant served verified discovery responses on 9/20/2024 denying it owned the greenbelt. (Anderson Decl., ¶ 5.) Defendant was obligated to make a reasonable effort to obtain such information before responding to discovery. (See <i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 782 [concerning interrogatories].) Defense counsel fails to explain why such effort was not made prior to responding to the discovery or why such information was unavailable to Defendant until 3/26/2026. Nevertheless, the factual basis supporting the proposed defense did not become sufficiently clear until after Plaintiff's deposition on 3/24/2026 and Defense counsel's subsequent investigation into ownership of the greenbelt on 3/26/2026. Thereafter, Defendant acted diligently and in good faith. On 3/27/2026, Defendant informed Plaintiff of its intent and on 4/10/2026, Defendant began amending its prior discovery responses to state it owned the greenbelt. (See Anderson Decl., ¶¶ 11, 12.) Defendant filed the instant motion on 4/17/2026. Plaintiff has not shown prejudice. Plaintiff speculates additional discovery may be necessary without identifying the specific discovery needed. The defense is based on the same operative facts and allegations at issue throughout this case. Additional discovery is likely not necessary. Even if it were necessary, Plaintiff learned of Defendant's intent to pursue this defense when discovery was still open. Defendant informed Plaintiff of its intent on 3/27/2026 and non-expert discovery does not close until 5/26/2026. (See Anderson Decl., ¶¶ 11, 18.) Thus, Plaintiff has had time to conduct additional discovery. As to Plaintiff's argument the defense lacks merit, courts generally do not consider the validity of proposed amendments to a pleading on a motion for leave to amend. (See <i>Kittredge Sports Co. v. Sup. Ct.</i> (1989) 213 Cal.App.3d 1045, 1048.)
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		Defendant is ORDERED to file the amended answer within 2 days. Defendant to give notice.
5	Ford Motor Credit Company LLC vs. The Bros of Hope Corporation 30-2025-01507775-CU-BC-CJC	Motion to Compel Arbitration and Stay Proceedings Defendant Cyrille Tarla's unopposed Motion to Compel Arbitration and Stay Proceedings is GRANTED. The Retail Installment Sales Contract includes an arbitration provision which covers the claims asserted in the Complaint. (Tarla Decl., Ex. A ["Any claim or dispute ... which arises out of or relates to your credit application, purchase or condition of this Vehicle ... shall at your or out election, be resolved by neutral, binding arbitration ..."].) The matter is STAYED pending arbitration. Arbitration Status Review set for 5/27/2027 at 1:30 PM. The parties are ORDERED to file a Joint Status Report 5 days prior. Clerk to give notice.
6	Cardona vs. Maruchan 30-2025-01525470-CU-WT-CJC	Motion to Compel Arbitration and Stay Proceedings Defendant Priority Business Services, Inc.'s Motion to Compel Arbitration and Stay Action is GRANTED. Defendant's objections to the declaration of Plaintiff are OVERRULED. The Court will consider Defendant's new declaration filed in reply to the extent the declaration responds to an issue raised in opposition – whether Plaintiff executed a Spanish-language version of the arbitration agreement. Defendant asserts that as part of Plaintiff's hiring process, she electronically signed an arbitration agreement. Plaintiff does not dispute executing the agreement. She opposes the motion on the grounds that (1) the agreement does not identify the "Company" and was not signed by an employee of Defendant, (2) the agreement is unconscionable because it was part of a click-through onboarding screen which did not provide Plaintiff, a Spanish speaker, a Spanish explanation of its contents, and (3) the agreement states it is subject to "controlling law" including the California Arbitration Act without expressly providing for the requirements of <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24